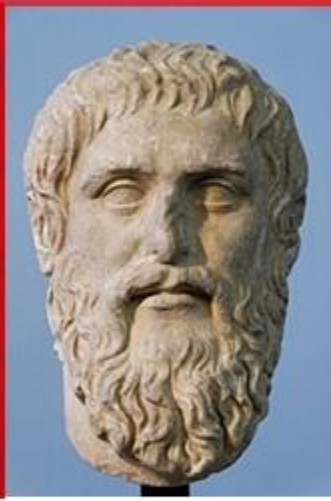
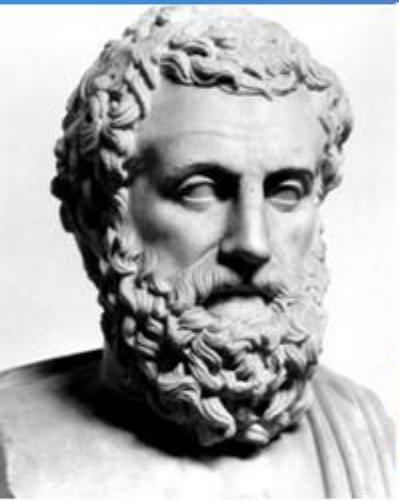


ETHICS, INTEGRITY & APTITUDE



APTITUDE

MODULE – 29

**ETHICS IN PUBLIC
ADMINISTRATION**

WHY ETHICS OR VALUES IN PUBLIC ADMINISTRATION?

- 1 Because of significance of functions performed by **administrators**.

FUNCTIONS PERFORMED BY ADMINISTRATION

- a In a **parliamentary democracy**, political executive is temporary whereas bureaucracy is permanent.
- b **Political executive** is responsible for policy formulation and **Bureaucracy** is responsible for implementation.
- c Political executive is always influenced by short term political considerations like winning elections.

- d **Political populism** might have dominated policy making process which might cause huge damage to economic systems in long run.

- e Bureaucracy is expected to provide **unbiased, meritorious and rational suggestions to political executive** without fear or favouritism in policy formulation by taking into consideration long term externalities.

Cabinet - Highest decision making body in Parliamentary democracy



WHY ETHICS OR VALUES IN PUBLIC ADMINISTRATION?

- 2** In a developing country like India wherein resources are limited in supply, bureaucracy is expected to take decisions regarding allocation of resources to various sectors and sections of society.

For example:

- Land is limited in supply, problem gets more complicated when a factor of production like land has alternative uses.
- Bureaucracy has to take a decision regarding use of land. They must keep in mind utilitarianism principles while allocating the resources.

- 3** Bureaucracy is also responsible for management of large scale public sector enterprises. It is the tax payer's money which is being spent on managing these public sector enterprises. They must ensure economy and efficiency.



WHY ETHICS OR VALUES IN PUBLIC ADMINISTRATION?

4 In development administration, bureaucracy plays very important role in redistributing incomes and assets in favour of weaker sections of society. They are expected to implement welfare schemes with the objective of uplifting these sections of society from poverty.

➤ They can do so only when they have values like Honesty, Integrity, Empathy, Selflessness and so on.

5 Bureaucracy is also responsible for bringing about socio-economic transformation. It is possible only when they are committed to public service. They should have courage of conviction and perseverance.

6 Finally, Bureaucrats are also role models for others in the society. Their ethical behaviour and actions can influence the value system of societies.



ETHICS, INTEGRITY & APTITUDE

ETHICS IN PUBLIC ADMINISTRATION

2ND ARC DIVIDED THIS CONCEPT AS FOLLOWS

- 1 ETHICS & POLITICS
- 2 ETHICS IN PUBLIC LIFE
- 3 ETHICAL FRAMEWORK FOR MINISTERS
- 4 ETHICAL FRAMEWORK FOR LEGISLATORS
- 5 ETHICAL FRAMEWORK FOR JUDICIARY

ETHICS & POLITICS

1

Higher standards of ethical conduct were integral part of the freedom struggle. However, following vices started afflicting the political processes in the country after transfer of power.

a

Excesses in election

- In-campaign funding
- Use of illegitimate money
- Quantum of expenditure
- Imperfect electoral rolls
- Impersonation
- Booth-capturing
- Violence
- Inducements and Intimidation

b

Floor crossing after elections to get into power

c

Abuse of power in public office.

2

Criminalization of Politics – Participation of criminals in the electoral process.

a

Reasons for Criminals joining Politics

- Opportunity to influence crime investigation.
- Opportunity to convert the policemen from being potential adversaries to allies.



ETHICS & POLITICS

3 Reasons for political parties to admit criminals– Criminals have the ability to secure votes for political parties through their money and muscle power.

4 Recent Improvements

- a** Improvement in the accuracy of electoral rolls
- Computerization of electoral rolls
 - Voter registration has been made more accessible to voters.
 - Provision of Photo-identity cards for all voters .

- b** Disclosure of antecedents for Candidates.
- Conviction by a court or pending of a criminal's case
 - Assets and Liabilities of candidates and family members.

- c** Disqualification of persons convicted of Criminal Offence.

- d** Enforcement of Model Code of Conduct during elections.



ETHICS, INTEGRITY & APTITUDE

ETHICS IN PUBLIC ADMINISTRATION

ETHICS & POLITICS

4 Recent Improvements

- e Ensuring Free and fearless polling
 - Policing arrangements have been improved
 - **Electronic Voting Machines** throughout the country
 - Death of an independent candidate would not lead to the cancellation of an election.
- f Restriction of size of Council of Ministers to 15% of the total strength of Lower House.



ETHICS & POLITICS

5 Issues in Political Reforms**a** Reform of Political Funding

- **Recommendation** – A system for partial state funding should be introduced in order to reduce the scope of illegitimate and unnecessary funding of expenditure of elections.

b Tightening of anti-defection law

- **Recommendation** – The issue of disqualification of members on grounds of defection should be decided by the President/Governor on the advice of the Election Commission.

c

Disqualification.

- **Recommendation** – Disqualify all persons facing grave and heinous crime charges from representing the people in legislature.

d

- All False Declarations made before the Returning Officer, Election Commission should be made an electoral offence.



ETHICS & POLITICS

5

Issues in Political Reforms

e

Coalition Ethics

- **Recommendation** – If one for more parties in a coalition with a common programme, re-align midstream with one or more parties outside the coalition, then the members of that party shall have to seek a fresh mandate from the electorate.

f

Expediting Disposal of election Petitions

- **Recommendation** – Special Election Tribunals with a mandate to dispose of Election Petitions within a period of six months should be set up.

COALITION FOR
PEACE AND ETHICS

ETHICS IN PUBLIC LIFE

1 All public functionaries are trustees of the people

2

- The role of **ethics in public life** has many **dimensions**.
- At one end is the expression of high moral values and at the others, the specifics of action for which a public functionary can be held legally accountable.

3 Any framework of **ethical behaviour** must include the following elements:

- Codifying ethical norms and practices
- Disclosing personal interest to avoid conflict between public interest and personal gain.
- Creating a mechanism for enforcing the relevant code
- Providing norms for qualifying and disqualifying a public functionary from office.



ETHICS IN PUBLIC LIFE

4 Seven principles of public life laid down by Nolan Committee

i **Selflessness** – Holders of public office should take decisions solely in public interest

ii **Integrity** – Holders of public office should not place themselves under obligation to outsiders that could influence them in their duties.

iii **Objectivity** – Choice be made on merit.

iv **Accountability** – Be accountable to one's decisions and actions

v **Openness** – Be as open as possible in all decisions and actions.

vi **Honesty** – Take steps to resolve conflicts such that public interest is promoted.

vii **Leadership** – Promote the above principles by example.



ETHICAL FRAMEWORK FOR MINISTERS

1 Code of Conduct prescribed by Government of India. A minister shall.

i Disclose assets, liabilities and business interests of **self and family members** before taking oath and then annually.

ii Sever connections with **businesses in which she/he had interest** before taking oath of office.

iii Refrain from buying from or selling to Government any immovable property.

iv **Report** whenever any family member sets up business

v **Not accept contribution** for any purpose, political, charitable or otherwise.



सत्यमेव जयते

Government Of India



ETHICAL FRAMEWORK FOR MINISTERS

1 **Code of Conduct** prescribed by Government of India. A minister shall.

vi Not raise funds except for the benefit of a registered society.

vii Not accept **valuable gifts** except from close relatives.

viii Accept award only from organizations whose credentials are unimpeachable and the cash part shall not be **accepted**. Even the awards for the work before assuming office can be accepted only with the specific approval of PM/CM

xi Stay only in **government accommodation** during official tour.

x Avoid attending lavish parties given in his/her honour.



ETHICAL FRAMEWORK FOR MINISTERS

2

- Code of conduct is more in the nature of prohibitions.
- There must be a **code of Ethics** to provide guidance on how Ministers should uphold highest stands of **constitutional and ethical conduct** in the discharge of duties.
- Code of Ethics includes that a minister must.

i

Uphold the principle of **collective responsibility**

ii

Be **accountable to parliament** for his/her actions and decisions.



ETHICAL FRAMEWORK FOR LEGISLATORS

1 As per, Existing Code of Conduct for Members of **Rajya Sabha**. A Minister must

i Not do anything that brings **disrepute** to the Parliament

ii Place **private interest** subordinated to public interest

iii Never expect or accept a **remuneration** for giving or not giving vote or introducing a **bill** in the Legislature.

iv Not accept gifts which may interfere with honest and impartial discharge of official duties.

v Not **disclose confidential information** that is acquired by him/her by virtue of being Member of Parliament

vi Not certify **the credentials of any individual or institution** of which they have no personal knowledge.

vii **Respect all religions.**

viii Not misuse official amenities.



ETHICAL FRAMEWORK FOR LEGISLATORS

2 Register of Interests – Legislators are expected to register all their interests periodically.

3 According to **Section 75A of Representation of People Act, 1951**, every elected Candidate for a House of Parliament or Legislature of the State, shall, within ninety days from the date on which he/she makes and subscribes on oath or affirmation, files the details of his assets/liabilities to the Chairman of the Council of State or Legislative Council, or the Speaker of Lok Sabha or the Legislative Assemblies as the case may be.

4 Recommendations

i An office of '**Ethics Commissioner**' may be constituted by each House of Parliament. This Office would assist the **Committee on Ethics** in the discharge of its functions.

ii Ethical Committees may be constituted at every state legislature.

iii '**Register of Interest**' may be maintained with the declaration of interest by Members of the State legislatures.



ETHICAL FRAMEWORK FOR JUDICIARY

1 **Supreme Court** has adopted a charter called the 'Restatement of Values of Judicial Life'. It may be summarized as below.

i Do not contest the election to any office of a club, society.

ii Do not maintain association with any **member of the Bar**.

iii Do not permit any family member to practice before him/her.

iv Do not hear or decide any case in which a member of his family is concerned.

v Do not give interviews to media..

vi Do not accept gifts except from family members, close relatives and friends.

vii Do not speculate in shares.

viii Do not raise funds for any association.



ETHICAL FRAMEWORK FOR JUDICIARY

2 Recommendations

- i** A **National Judicial Council (NJC)** should be set up and it should be authorized to lay down the code of conduct for judges, including the subordinate judiciary.
- ii** NJC should be empowered to enquire into **alleged misconduct** and impose **minor penalties**.
- iii** A **Judge** of the Supreme Court should be designated as the **Judicial Values Commissioner**. She/he should be assigned the task of enforcing the code of conduct.



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